

IN THE HIGH COURT OF DELHI AT NEW DELHI

O.M.P.(COMM) 61 of 2027

Konkast Engineering & Construction Private Limited

... PETITIONER

VERSUS

Meridian Infra Projects Limited

... RESPONDENT

REPLY TO THE SECTION 34 PETITION

1. The Respondent (Claimant in the arbitration) denies that the Award suffers from patent illegality, perversity or any other ground available under Section 34(2) or 34(2A) of the Act.
2. AS TO GROUND A (APPORTIONMENT OF DELAY). The Tribunal expressly considered the site diary entries relied upon by the Petitioner and, on a preponderance of the evidence, including the unrebutted testimony that the Petitioner's own equipment mobilisation contributed substantially to the delay, arrived at a reasoned apportionment of 65:35. This is a considered finding of fact on the evidence and does not warrant interference under the limited scope of Section 34.
3. AS TO GROUND B (THE COUNTERCLAIM). The Tribunal's finding that no contemporaneous written instruction or measurement record supported the counterclaim was based on an evaluation of the Site Engineer's Memo and the absence of any variation order under Clause 13 of the Contract, both of which were squarely before the Tribunal and expressly considered in the Award (Annexure A-1). This does not amount to a failure to consider material evidence.
4. AS TO GROUND C (RA BILL NO. 7). The Tribunal's preference for the Claimant's certification register, being a contemporaneous document proved through unrebutted testimony, over the Petitioner's uncountersigned internal working sheet, is a plausible view on the evidence and does not meet the high threshold of perversity required to interfere with an arbitral award.
5. The scope of a Section 34 petition does not extend to a re-appreciation of evidence or to substituting the Court's own view for a plausible view taken by the Tribunal, and the petition is liable to be dismissed with costs.

PRAYER

- a. Dismiss the petition with costs.

VERIFICATION

I, Neha Kohli, Vice President (Contracts), verify that the contents of this reply are true and correct.

Verified at New Delhi on this the 5th day of November, 2026.

For Meridian Infra Projects Limited
(Neha Kohli, Vice President (Contracts))
Mr. Rohan Kapadia, Advocate for the Claimant
Enrolment No. DEL/4471/2012

ANNEXURE A-1 -- EXTRACT OF THE ARBITRAL AWARD (ISSUES 1, 2 AND 4)

4. ISSUE 1: Whether RA Bill No. 7 was certified for Rs. 89,40,000 as pleaded by the Claimant or Rs. 92,40,000 as pleaded by the Respondent. The Tribunal has examined the certification register maintained by the Claimant's Engineer-in-Charge, which is a contemporaneous record maintained in the ordinary course of contract administration and was proved through the testimony of Ms. Kohli. The Respondent's figure of Rs. 92,40,000 does not correspond to any contemporaneous certified record placed before the Tribunal, and the Respondent's witness was unable, in cross-examination, to identify the document or engineer by whom that figure was certified. The Tribunal accordingly accepts the Claimant's certification record and holds that RA Bill No. 7 was certified at Rs. 8,94,00,000.
5. ISSUE 2: Whether the delay in completion of the third substation is attributable to the Claimant or the Respondent. The Tribunal has considered the site diary entries in evidence, which record that site access for the third substation was substantially handed over to the Respondent by 05.03.2025 without any written objection raised at that time. However, the same diary also records continuing land-clearance formalities at the site into April 2025, corroborating the Respondent's contention of a residual impediment. On a preponderance of the evidence, the Tribunal finds that the delay is attributable in part to each party, and apportions 65% of the delay to the Respondent (on account of its own mobilisation taking approximately seven additional weeks beyond the residual land-clearance period) and 35% to the Claimant.
7. ISSUE 4: Whether the Respondent is entitled to the counterclaim of Rs. 68,00,000 for additional works. The Respondent's own case is that the additional works, including cable trenching beyond the contracted scope, were directed telephonically without any written variation order under Clause 13 of the Contract. No contemporaneous written instruction, site memorandum contemporaneous with the works, or measurement record corroborating the claimed scope and value was placed before the Tribunal. In the absence of any such record, the counterclaim is dismissed.